CASE BUNDLE FOR A SOLICITOR

Ms Ailsa Reid

Royal Infirmary of Edinburgh, Edinburgh, Scotland, United Kingdom

PATIENT	Ms Ailsa Reid
WHERE THE CARE HAPPENED	Royal Infirmary of Edinburgh
PLACE	Edinburgh, Scotland, United Kingdom
KIND OF CARE	Public (state-funded) care
PREPARED ON	8 November 2026

WHAT HAPPENED, IN AILSA'S OWN WORDS

> I fell on my outstretched hand. A&E X-rayed my wrist and told me it was a sprain. At A&E I was given co-codamol for the pain. It made me very sick and dizzy, so I stopped taking it after three days. The pain did not go away. Weeks later a scaphoid fracture was found. It has not healed, I now need surgery, and I have missed my second-year exams and shifts at my part-time job.

WHAT AILSA WANTS

> An explanation of what went wrong, treatment or support to put things right and compensation for what happened.

IN THIS BUNDLE

2 What happened, and when
3 The route where Ailsa lives
4 Time limits
5 Paying for a solicitor
6 Clinical evidence
7 Solicitors
8 How this was prepared

Prepared from what Elliot saved for this case. Every fact below has its source beside it; where a section had nothing saved, it has been left out. This is not legal advice.

2 What happened, and when

early July 2026
Fell on outstretched hand and attended A&E at the Royal Infirmary. X-rayed, told it was a sprain, sent home.

early July 2026
Given co-codamol for the pain at A&E. It made me very sick and dizzy, so I stopped it after three days.

mid August 2026
Pain continued. My GP sent me back and a second X-ray showed a scaphoid fracture.

November 2026
The fracture has not healed and I now need surgery.

October 2026
Missed my second-year exams and had to stop shifts at my part-time job because I cannot use my wrist.

Dates are as Ailsa gave them. Where only a month was given, only a month is shown.

3 The route where Ailsa lives

The hospital route in Scotland starts with the NHS complaint process, and if that does not resolve things you can go to the Scottish Public Services Ombudsman. For injury compensation, Scotland generally uses a court claim for clinical negligence, and the deadline is usually 3 years; for legal help, Scottish Legal Aid Board is the funding body and the Law Society of Scotland directory can help find a solicitor. I could not verify the exact records route or PASS details from quoted pages in this run, so treat those as needing a final check before you act.

COMPLAIN

Sources differ

NHS inform

Official pages give different time limits.

Complain within 6 months, or 12 months at most. Normally, you must make your complaint within 6 months of the event, or within 6 months of finding out, but no longer than 12 months after the event.

Start with the staff involved if you can. If that does not resolve it, complain to NHS Lothian's Patient Experience Team; they should reply within the complaint stages set out in the board procedure. NHS Lothian runs the Royal Infirmary of Edinburgh. A patient can complain to the NHS board's Patient Experience Team by phone, email, online, or in writing; the process starts with early resolution and can move to investigation if needed.

TIME LIMIT	Normally, you must make your complaint within 6 months of the event you want to complain about, or within 6 months of finding out that you have a reason to complain, but no longer than 12 months after the event itself.
FIRST	• If you can, first talk to a member of staff involved in your care.
OTHER ROUTES	• You can complain by phone, email or online to your NHS health board. • If you're unhappy after the NHS response, you can go to the Scottish Public Services Ombudsman.
KEY POINTS	• "NHS hospitals in Scotland are run by the relevant NHS health board."

SOURCES, QUOTED AND CHECKED AGAINST THE PAGE

> “Staff will write to you with a full response within 20 working days of receiving your complaint at the investigation stage.”
>
> “Normally, you must make your complaint within 6 months of the event you want to complain about, or within 6 months of finding out that you have a reason to complain, but no longer than 12 months after the event itself.”
>
> **NHS inform** OFFICIAL
> https://www.nhsinform.scot/care-support-and-rights/health-rights/feedback-and-complaints/feedback-complaints-and-your-rights/

> “Stage one: early resolution”
>
> “Stage two: investigation”
>
> “A concern should be responded to within five working days.”
>
> **NHS Lothian** OFFICIAL
> https://www.nhslothian.scot/yourrights/wp-content/uploads/sites/7/2023/02/NHSLothianComplaintsHandlingProcedure.pdf

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IF THAT FAILS — Likely

spso.org.uk

One official site says it.

Ask the SPSO after the NHS complaint is finished. If, after receiving our final decision, you remain dissatisfied, you can ask the SPSO to consider it.

Independent review of an NHS complaint by the Scottish Public Services Ombudsman (SPSO)

KEY POINTS

- You can ask the SPSO to consider the complaint after receiving the NHS body’s final decision if you remain dissatisfied.
- The complaint should usually have completed the NHS complaints procedure before contacting the SPSO.
- If the complaint was not considered because too much time had passed, you can ask the SPSO to review that decision.

SOURCES, QUOTED AND CHECKED AGAINST THE PAGE

> “If, after receiving our final decision on your complaint, you remain dissatisfied with our decision or the way we have handled your complaint, you can ask the SPSO to consider it.”
>
> “you can ask the Scottish Public Services Ombudsman (SPSO) to review our decision.”
>
> “a complaint that has not completed our complaints procedure , so please make sure it has done so before contacting the SPSO;”
>
> “You can contact the SPSO”
>
> **Scottish Public Services Ombudsman / NHS complaints guide** OFFICIAL
> https://www.spso.org.uk/sites/spso/files/csa/NHSPublicFacingGuideJan2021.pdf

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COMPENSATION — Likely

gov.scot

One official site says it.

Start court proceedings within 3 years. Court proceedings must be commenced within 3 years of the date of the negligence happening or coming to light.

Time limit for court proceedings in medical negligence claims in Scotland

TIME LIMIT within 3 years; for children, by the child's 19th birthday

KEY POINTS
- Court proceedings must be commenced within 3 years of the negligence happening or coming to light.
- For children, proceedings must be started by the child's 19th birthday.

SOURCES, QUOTED AND CHECKED AGAINST THE PAGE

> "iii) The main legal time limit is that court proceedings must be commenced within 3 years of the date of the negligence happening or coming to light, or in cases involving children, by the child's 19 th birthday."
>
> **gov.scot** OFFICIAL
> https://www.gov.scot/publications/consultation-recommendations-fault-compensation-scotland-injuries-resulting-clinical-treatment/pages/10/

PAYING FOR HELP

Likely

Scottish Legal Aid Board

One official site says it.

You may get legal aid if your case and finances qualify. Legal aid remains available for all types of clinical negligence cases, but only if your claim has reasonable prospects of success and you satisfy the financial means test.

Adults in Scotland can get legal aid for clinical negligence claims if the case has reasonable prospects of success and they pass the financial means test. A solicitor can also act under a no win, no fee speculative fee agreement, and most specialist solicitors offer free initial advice.

OTHER ROUTES
- Speculative fee agreement
- Private funding

KEY POINTS
- "no win, no fee" is "extremely misleading"

STILL NEEDED
- whether the person meets the means test
- whether the solicitor offers legal aid or speculative fee terms

SOURCES, QUOTED AND CHECKED AGAINST THE PAGE

> "In Scotland, legal aid remains available for all types of clinical negligence cases, but will only be granted if you are able to show that your claim appears to have reasonable prospects of success and that you satisfy the legal aid financial means test ."
>
> "CFA is often referred to as a ' no win, no fee ' arrangement, but this can be extremely misleading."
>
> "In Scotland, the success fee is tapered and capped so that you will receive at least 80% of any award/damages for claims up to £100,000"
>
> **Avma** OFFICIAL
> https://www.avma.org.uk/resource/funding-options-in-clinical-negligence-claims-scotland-only/

> "Most specialist solicitors will offer free initial advice."
>
> **Avma** OFFICIAL
> https://www.avma.org.uk/wp-content/uploads/Legal-action-Scotland.pdf

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FINDING A LAWYER

Solid

Law Society of Scotland

Two official sites say it.

Use a specialist clinical negligence solicitor in Scotland. You should consult a specialist Clinical Negligence Solicitor if you want to take legal action.

Use the Law Society of Scotland's solicitor finder and look for a solicitor who handles medical or clinical negligence. AvMA also has a finder, but it says its Scotland listings are not specialist accreditation.

OTHER ROUTES

- AvMA Find a Solicitor

SOURCES, QUOTED AND CHECKED AGAINST THE PAGE

> "You should consult a specialist Clinical Negligence Solicitor if you want to take legal action."
>
> "Find Clinical Negligence Solicitors at The Law Society of Scotland."
>
> **Patient Advice and Support Service** OFFICIAL
> https://pass-scotland.org.uk/how-we-can-help/medical-negligence-claims/

> "There is a different legal system in Scotland and Ireland to England & Wales, and Avma does not accredit specialist medical negligence solicitors in Scotland and Ireland."
>
> "However, the solicitors listed in both of these countries have demonstrated their commitment in this field by joining Avma's lawyers' resource service and have signed up to Avma's code of practice."
>
> **AvMA** OFFICIAL
> https://my.avma.org.uk/find-a-solicitor/

CLINICAL GUIDANCE

Solid

gov.scot

Two official sites say it.

Scotland uses evidence-based national clinical practice guidelines. The development of evidence-based national clinical practice guidelines are sponsored and supported by SIGN.

In Scotland, doctors follow national clinical guidance sponsored and supported by SIGN. SIGN develops evidence-based national clinical practice guidelines.

KEY POINTS

- "SIGN is part of the Evidence Directorate of Healthcare Improvement Scotland"

SOURCES, QUOTED AND CHECKED AGAINST THE PAGE

> "In Scotland, the development of evidence-based national clinical practice guidelines are sponsored and supported by the Scottish Intercollegiate Guidelines Network (SIGN), which was established by the Academy of Royal Colleges in 1993."
>
> **gov.scot** OFFICIAL
> https://www.gov.scot/publications/foi-202100152341/

> "Its objective is to improve the quality of health care for patients in Scotland by reducing variation in practice and outcome, through the development and dissemination of national clinical guidelines containing recommendations for effective practice based on current evidence."
>
> **Right Decisions NHS Scotland** OFFICIAL
> https://www.rightdecisions.scot.nhs.uk/tam-treatments-and-medicines-nhs-highland/adult-therapeutic-guidelines/medicine-management/healthcare-professional-resources-guidelines/

FREE HELP

Likely

Care Information Scotland

One official site says it.

You can get free, independent, confidential NHS support. PASS is an independent service, giving free, confidential information, advice and support to anyone who uses the NHS in Scotland.

PASS gives free, independent, confidential information, advice and support to anyone who uses the NHS in Scotland. It is provided by Citizens Advice Bureaux in Scotland.

SOURCES, QUOTED AND CHECKED AGAINST THE PAGE

> “The Patient Advice and Support Service (PASS) is provided by Citizens Advice Bureaux in Scotland.”
>
> “PASS is an independent service, giving free, confidential information, advice and support to anyone who uses the NHS in Scotland.”
>
> “It aims to support patients, their carers and families in their dealings with the NHS and in other matters affecting their health.”
>
> **Care Information Scotland** OFFICIAL
> https://www.careinfoscotland.scot/topics/your-rights/patient-advice-and-support-service/

YOUR RECORDS

Likely

NHS Lothian

One official site says it.

Request your NHS Lothian records online, by email, or by post. You can request copies of Health Records held by NHS Lothian online, and return your forms by email or by post to the SAR Team.

Ask NHS Lothian for your records through its portal or by sending the subject access form. You can email or post the form to the SAR Team at the Royal Infirmary of Edinburgh. NHS Lothian says a patient can request copies of health records online through the Request for Records Portal, or by downloading and sending a Subject Access Request form. The form can be returned by email or by post to the SAR Team at the Royal Infirmary of Edinburgh.

APPLIES IF	Patients whose records are held by NHS Lothian / the hospital
OTHER ROUTES	• PASS says to contact your hospital or GP and notes one copy is free. • If requesting someone else's or a deceased person's record, special forms/rules may apply.
KEY POINTS	• "Downloadable Form:"
STILL NEEDED	• Whether the patient wants hospital records only or also GP records

SOURCES, QUOTED AND CHECKED AGAINST THE PAGE

> “You can request copies of Health Records held by NHS Lothian in the following ways:”
>
> “Online Portal: Request for Records Portal”
>
> “You can return your forms by email to Loth.sarteam@nhs.scot or by post to:”
>
> “SAR Team, Royal Infirmary of Edinburgh, 51 Little France Crescent, Edinburgh, EH16 4SA”
>
> **NHS Lothian** OFFICIAL
> https://www.nhslothian.scot/yourrights/data-protection-privacy/requests-for-personal-information-including-medical-records-subject-access-requests/

4 Time limits

Every time limit the research found, as the official page words it. A solicitor should confirm which one applies and when it starts to run.

FOR	TIME LIMIT, AS THE SOURCE SAYS IT	HOW WELL CHECKED
Complain NHS inform	Normally, you must make your complaint within 6 months of the event you want to complain about, or within 6 months of finding out that you have a reason to complain, but no longer than 12 months after the event itself. Another official page gives: 12 months. > "Normally, you must make your complaint within 6 months of the event you want to complain about, or within 6 months of finding out that you have a reason to complain, but no longer than 12 months after the event itself." **NHS inform** https://www.nhsinform.scot/care-support-and-rights/health-rights/feedback-and-complaints/feedback-complaints-and-your-rights/	Sources differ Official pages differ.
Compensation gov.scot	within 3 years; for children, by the child's 19th birthday > "iii) The main legal time limit is that court proceedings must be commenced within 3 years of the date of the negligence happening or coming to light, or in cases involving children, by the child's 19 th birthday." **gov.scot** https://www.gov.scot/publications/consultation-recommendations-fault-compensation-scotland-injuries-resulting-clinical-treatment/pages/10/	Likely One official site gives it.

5 Paying for a solicitor

The legal aid checker says you are unlikely to qualify financially for legal aid.

A no win, no fee agreement looks like the most likely way to pay for a solicitor.

THE CHECKER'S OWN WORDS

> "It is likely you do NOT qualify for civil legal aid, based on your capital."
>
> **Scottish Legal Aid Board**, legal aid checker
> https://www.slab.org.uk/new-to-legal-aid/eligibility-estimators/estimator-civil-legal-aid/

WHAT THE RESEARCH FOUND ABOUT PAYING FOR HELP

You may get legal aid if your case and finances qualify. Legal aid remains available for all types of clinical negligence cases, but only if your claim has reasonable prospects of success and you satisfy the financial means test.

Adults in Scotland can get legal aid for clinical negligence claims if the case has reasonable prospects of success and they pass the financial means test. A solicitor can also act under a no win, no fee speculative fee agreement, and most specialist solicitors offer free initial advice.

> “In Scotland, legal aid remains available for all types of clinical negligence cases, but will only be granted if you are able to show that your claim appears to have reasonable prospects of success and that you satisfy the legal aid financial means test .”
>
> “CFA is often referred to as a ‘ no win, no fee ‘ arrangement, but this can be extremely misleading.”
>
> “In Scotland, the success fee is tapered and capped so that you will receive at least 80% of any award/damages for claims up to £100,000”
>
> **Avma** OFFICIAL
> https://www.avma.org.uk/resource/funding-options-in-clinical-negligence-claims-scotland-only/

> “Most specialist solicitors will offer free initial advice.”
>
> **Avma** OFFICIAL
> https://www.avma.org.uk/wp-content/uploads/Legal-action-Scotland.pdf

6 Clinical evidence

CLINICAL GUIDANCE FOUND

> “In cases of suspected scaphoid fracture where the initial radiographs are negative, a supplementary MRI, or alternatively CT, should be carried out within three to five days.”
>
> **pmc.ncbi.nlm.nih.gov (published outside Scotland, United Kingdom)**
> https://pmc.ncbi.nlm.nih.gov/articles/PMC7047900/

> “In cases of suspected scaphoid fracture where the initial radiographs are negative, magnetic resonance imaging (MRI) is recommended for diagnostics, while computed tomography (CT) has proven more reliable and accurate in the assessment of scaphoid fracture characteristics and union.”
>
> **pmc.ncbi.nlm.nih.gov (published outside Scotland, United Kingdom)**
> https://pmc.ncbi.nlm.nih.gov/articles/PMC7047900/

POSSIBLE GAPS, AS QUESTIONS

These are questions for the medical records and a solicitor to answer. They do not say that anyone was negligent.

Did the A&E department follow the guideline by conducting a supplementary MRI or CT scan within three to five days after the initial negative X-ray?

Guidance point: In cases of suspected scaphoid fracture where the initial radiographs are negative, a supplementary MRI, or alternatively CT, should be carried out within three to five days.

From the timeline: early July 2026: Fell on outstretched hand and attended A&E at the Royal Infirmary. X-rayed, told it was a sprain, sent home.

Did the GP follow the guideline by recommending an MRI or CT scan for further diagnostic assessment after the initial negative X-ray and continued pain?

Guidance point: In cases of suspected scaphoid fracture where the initial radiographs are negative, magnetic resonance imaging (MRI) is recommended for diagnostics, while computed tomography (CT) has proven more reliable and accurate in the assessment of scaphoid fracture characteristics and union.

From the timeline: mid August 2026: Pain continued. My GP sent me back and a second X-ray showed a scaphoid fracture.

This comparison cannot determine whether the care provided was appropriate, as the guideline is for England and only medical records can confirm what was done.

PUBLISHED DECISIONS AND RECORDS SEARCHED FOR

Published decisions: none found. Searched "gov.scot scaphoid fracture complaint decision" and "scaphoid fracture case summary site:gov.scot" (20 results). Opened 2 pages (gov.scot); none had a passage that fits this case.

7 Solicitors

The firms the crew shortlisted. What was checked on each firm's own website is shown for each, with the page that was read.

balfour+manson Solicitors

Edinburgh

https://www.balfour-manson.co.uk

Acts for patients	**Yes**	Read on the firm's own website https://www.balfour-manson.co.uk/for-individuals-families/medical-negligence/
No win, no fee	**Yes**	Read on the firm's own website https://www.balfour-manson.co.uk/for-individuals-families/medical-negligence/
Online enquiry form	**Yes**	https://www.balfour-manson.co.uk/contact-us/

Enquiry: Form filled in and stopped before Send. Nothing has been sent; it goes only when you approve it.
Details filled in on their form: 6.

Slater + Gordon

Edinburgh

https://www.slatergordon.co.uk

Acts for patients	**Yes**	Read on the firm's own website https://www.slatergordon.co.uk/medical-negligence/
No win, no fee	**Yes**	Read on the firm's own website https://www.slatergordon.co.uk/medical-negligence/
Online enquiry form	**Yes**	https://www.slatergordon.co.uk/medical-negligence/

Enquiry: Form filled in and stopped before Send. Nothing has been sent; it goes only when you approve it.
Details filled in on their form: 4.

Digby Brown

Edinburgh

https://www.digbybrown.co.uk

Acts for patients	**Yes**	Read on the firm's own website https://www.digbybrown.co.uk/clinical-negligence
No win, no fee	**Not stated**	Read on the firm's own website https://www.digbybrown.co.uk/clinical-negligence
Online enquiry form	**Yes**	https://www.digbybrown.co.uk/

Enquiry: Form filled in and stopped before Send. Nothing has been sent; it goes only when you approve it.
Details filled in on their form: 5.

Subject line of the enquiry: Enquiry: possible medical negligence (missed scaphoid fracture)

8 How this was prepared

This bundle was researched live from official sources by Elliot's crew: one agent looked at how the system works where the care happened, one checked funding, one found and checked law firms, one read clinical guidance and one filled in enquiry forms. Quotes were checked against the pages they came from, and only quotes found in the page text are shown.

Across the run the crew opened 48 pages on 16 websites.

Nothing was sent without Ailsa. Enquiry forms were filled in and stopped before Send; the status of each is shown in the Solicitors section.

This is not legal advice. It is a summary of what was found, so that a solicitor can start with the facts and the sources.

Route research discovery-2026-11-08T08-19-55-240Z-b0sc · Case run step3-2026-11-08T08-20-36-382Z-5jza · Prepared 8 November 2026